

Akshata vs Ravichandra on 11 August, 2023

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NC: 2023:KHC-K:6396

CP No. 200032 of 2023

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 11TH DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MRS JUSTICE K S HEMALEKHA

CIVIL PETITION NO.200032 OF 2023

BETWEEN:

SMT. AKSHATA
W/O RAVICHANDRA BICHKUNDE
AGED ABOUT: 26 YEARS
OCC: HOUSEHOLD
R/O H.NO.17-4-267/1
BEHIND KAILAS PETROL PUMP
GUMPA ROAD
BIDAR-585401.

...PETITIONER

(BY SMT. VEERANI V.NANDI, ADVOCATE)

AND:

Digitally signed by
SHILPA R
TENIHALLI
Location: HIGH
COURT OF
KARNATAKA

RAVICHANDRA
S/O RAJASHEKHAR BICHKUNDE

AGED ABOUT: 33 YEARS

OCCUPATION: CIVIL ENGINEER
RESIDENT OF: HOUSE NO.4-6-29
KHANDRE GALLI
GUNJ, BHALKI
DISTRICT: BIDAR - 585 401.

...RESPONDENT

(NOTICE TO RESPONDENT - SERVED)

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THIS CP IS FILED U/S. 24 OF THE CPC, PRAYING TO WITHDRAW M.C.NO.35/2021 FROM THE COURT OF SENIOR CIVIL JUDGE AND JMFC, BHALKI AND TRANSFER THE SAME TO THE COMPETENT COURT OF PRINCIPAL JUDGE, FAMILY COURT, BIDAR, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION COMING ON FOR ADMISSION THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Though the respondent is served with notice, he has chosen to remain absent.

2. Heard the learned counsel for petitioner.

3. The Petitioner-wife is before this Court seeking to withdraw M.C.No.35/2021 pending on the file of Senior Civil Judge and JMFC, Bhalki and transfer the same to the court of Principal Judge, Family Court, Bidar.

4. It is not in dispute that the petitioner is the legally wedded wife of respondent and their marriage was solemnized on 08.12.2019 at Asture Kalyan Mantap, Bhalki, Tq. Bhalki, Dist. Bidar as per the Hindu customs and traditions. It is also not in dispute that the petitioner has delivered a female baby on 28.07.2021 and due to un- NC: 2023:KHC-K:6396 cordial relation between the petitioner and the respondent, they are living separately.

5. It appears that the petitioner has filed a petition against the respondent in CrI.Misc.No.1252/2022 under Section 12 of Protection of Women from Domestic Violence Act, 2005 on the file of Prl. Civil Judge & JMFC, Bidar seeking maintenance and for other reliefs and same is pending consideration before the said court, the petitioner

- wife has also filed petition in M.C.No.51/2023 under Section 9 of Hindu Marriage Act, 1955 on the file of Principal Judge, Family Court at Bidar seeking decree for conjugal rights. It is stated that the respondent-husband has filed petition in M.C.No.35/2021 under Section 13(1)(ia) & (ib) of Hindu Marriage Act, 1955, before the Senior Civil Judge & JMFC, Bhalki seeking for divorce on the ground of cruelty and desertion.

6. The learned counsel for the petitioner would submit that petitioner is a young lady aged about 26 years and has got a female child aged about 02 years, no source NC: 2023:KHC-K:6396 of income and is residing at Bidar along with the child in her parents home. It is stated that the distance between Bidar to Bhalki is around 80 kms causing inconvenience since the baby is too young to be left alone under the care of her aged old parents and there being financial constraints since no maintenance has yet been awarded to the petitioner. The learned counsel would contend that the convenience of the wife takes a paramount concern while transferring the petition from one place to

another.

7. Section 24 of the CPC enumerates this Court to exercise power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by Apex Court in catena of judgment in line. The Apex Court in case of N.C.V. AISHWARYA VS. A.S.SARAVANA KARTHIK SHA reported in 2022 SCC OnLine SC 119 has held that at para No.9 which reads as under:

NC: 2023:KHC-K:6396 "9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding.

In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

8. In light of the present facts and circumstances, the petitioner being a young lady aged about 26 years and having a female child aged about 2 years residing at Bidar, at her parents house, it is inconvenient for the petitioner to travel all the way to Bhalki which is around 80 K.Ms. NC: 2023:KHC-K:6396 The convenience of the wife needs to be considered than the inconvenience that would be caused to the husband.

9. In light of the reasons stated supra, the petition filed by the wife needs to be allowed. Accordingly, this Court pass the following:

ORDER

a) The civil petition is allowed.

b) The M.C.No.35/2021 pending on the file of Senior Civil Judge & JMFC, Bhalki is withdrawn and transferred to the Court of Principal Judge, Family Court, Bidar.

Sd/-

JUDGE BL